

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE, PURSUANT TO SECTIONS 1.1.6 & 2.4.1 OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, AMENDING THE LANDSCAPING REQUIREMENTS UNDER UNIFIED DEVELOPMENT CODE SECTIONS 6.3.4a, 6.3.4b, AND 6.3.7e.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That on December 5, 2011, the Cheyenne Planning Commission unanimously recommended approval of the “Cheyenne Unified Development Code.”

Section 2. That on January 23, 2012, the Governing Body of the City of Cheyenne unanimously approved the Unified Development Code (Ordinance No. 3943) with an effective date of April 30, 2012.

Section 3. That, in accordance with the Unified Development Code (UDC) Section 2.4.1b(1), the sponsors of this ordinance are, by their own initiative, proposing amendments to the UDC.

Section 4. That the sponsors of this Ordinance find that the current landscaping requirements contained in Sections 6.3.4a, 6.3.4b, and 6.3.7e of the Unified Development Code (“UDC”) need to be amended.

Section 5. That on August 19, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed UDC amendments that are the subject of this ordinance, and recommended denial of the amendments.

Section 6. That UDC Section 6.3.4a is amended to read:

Trees. When a landscape plan is required by UDC Section 6.3.2a, the sum of all Tree points, as defined in Table 6-8 below, from trees used in the landscape must exceed the required landscape area measured in square feet divided by 500. When a landscape plan is required by UDC Section 6.3.2b or Section 6.3.2c, the sum of all Tree points, as defined in Table 6-8 below, from trees used in the landscape must exceed the required landscape measured in square feet area divided by 1,000. For the purpose of calculating the Tree Point requirement, utility easements within internal landscape areas, athletic fields, and playgrounds may be subtracted from the required internal landscape area.

Section 7. That UDC Section 6.3.4b is amended to read:

Ground Cover and Non-tree Landscape Features. When a landscape plan is required by UDC Section 6.3.2a, the sum of all Ground Cover and Non-tree Landscape Feature points, as defined in Table 6-9 below, from ground cover and non-tree landscaping features used in the landscape must exceed the square footage of the required internal landscape area divided by 500. When a landscape plan is required by UDC Sections 6.3.2b or Section 6.3.2c, the sum of all Ground Cover and Non-tree Landscape Feature points, as defined in Table 6-9 below, from ground cover and non-tree landscaping features used in the landscape must exceed the square footage of the required internal landscape area divided by 1,000.

Section 8. That UDC 6.3.7e is amended to read:

Unless otherwise specified, when a landscape plan is required by UDC Section 6.3.2a, any required landscape area, including the internal landscaping area, screening and buffering areas, landscaped setback and parking strips, shall consist of a minimum of 75% ground cover by living grass or other plant materials based on mature size of vegetation. Unless otherwise specified, when a landscape plan is

required by UDC Sections 6.3.2b or Section 6.3.2c, any required landscape area, including the internal landscaping area, screening and buffering areas, landscaped setback and parking strips, shall consist of a minimum of 50% ground cover by living grass or other plant materials based on mature size of vegetation.

Section 9. That UDC Section 6.3.7e(1) is amended to read:

The foliage crown of deciduous trees shall not be used in the required ground cover percentage calculations.

Section 10. That UDC Section 6.3.7e(2) is amended to read:

When a landscape plan is required by UDC Section 6.3.2a, the remaining 25% of the required landscape area may be covered with bark, wood chips, rock, stone or similar materials. When a landscape plan is required by UDC Sections 6.3.2b or Section 6.3.2c, the remaining 50% of the required landscape area may be covered with bark, wood chips, rock, stone or similar materials.

Section 11. Sections, paragraphs, sentences, clauses and phrases of this Ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this Ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 12. That this Ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

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